

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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CLIFTON ALSTON,

Plaintiff,

VERIFIED COMPLAINT

- against -

Index No.

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, HON. WILLIAM BRATTON,
Commissioner of the New York City Police Department,
THE NEW YORK CITY TRANSIT AUTHORITY,
CARMEN BIANCO, President of the MTA New York City
Transit Authority, POLICE OFFICER JOHN DOES Nos. "1",
"2" and "3" (actual names unknown, intended to be the Police
Officers who arrested, assaulted and battered the Plaintiff on
July 12, 2014), POLICE OFFICER "JOHN" MORRIS
(actual first name unknown, intended to be the Police Officer
who refused to permit the Plaintiff to enter the Subway
station on July 12, 2014), EAST HARLEM PILOT BLOCK-
BUILDING 1 HOUSING DEVELOPMENT FUND
COMPANY, INC. d/b/a TAINO TOWERS, EAST HARLEM
PILOT BLOCK-BUILDING 2 HOUSING DEVELOPMENT
FUND COMPANY, INC. d/b/a TAINO TOWERS, EAST
HARLEM PILOT BLOCK-BUILDING 3 HOUSING
DEVELOPMENT FUND COMPANY, INC. d/b/a TAINO
TOWERS, EAST HARLEM PILOT BLOCK-BUILDING 4
HOUSING DEVELOPMENT FUND COMPANY, INC. d/b/a
TAINO TOWERS, ARCO MANAGEMENT CORP. and XYZ
CORPORATION (Actual Name Unknown) d/b/a THE
CRYSTAL BALLROOM and PLUGOUT, LLC,

Defendants.
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The Plaintiff, Clifton Alton, by his undersigned attorney, Matthew A. Kaufman, Esq.,
does state and say as and for his Complaint:

PLAINTIFF'S FIRST CAUSE OF ACTION

1. The Plaintiff, Clifton Alston is a resident of Kings County, City and State of New
York.

2. The Plaintiff, Clifton Alston is an African-American male, a citizen of the United States with dark skin.
3. Defendant City of New York [hereinafter referred to as “CITY”] is a Municipal Corporation, duly formed and created pursuant to the laws and statutes of the State of New York.
4. Upon information and belief, the claims herein fall within one or more of the exceptions as outlined in New York local law, C.P.L.R. § 1602.
5. Defendant New York City Police Department [“NYPD”] is a department formed and created as a functioning arm and branch of Defendant CITY pursuant to the laws of the State of New York, ordinances, and rules of Defendant of CITY.
6. Defendant CITY At all times material hereto, Defendant CITY, by its agents, servants and employees, as well as by Defendant “NYPD”, were responsible for the training and instruction of individuals employed by Defendant NYPD.
7. Defendant William Bratton is the Commissioner of Defendant NYPD at all times material herein, and is sued here in his representative capacity as the Commissioner of Defendant NYPD [hereinafter referred to as “Bratton”].
8. Defendant New York City Transit Authority [hereinafter, “NYCTA”] is a public benefit corporation formed and created by the laws of the State of New York.
9. Defendant Carmen Bianco, President of the MTA New York City Transit Authority, and is sued here in his representative capacity as the President of the head of Defendant NYCTA [hereinafter referred to as “Bianco”].

10. The individually named Defendant Police Officers “John Doe Nos. ‘1’, ‘2’ and ‘3’” (Actual Names Unknown), are employees, members and Police Officers of Defendant NYPD on July 12, 2014.
11. Defendant Police Officer “John” Morris (actual first name unknown), is an employee, member and Police Officer of Defendant NYPD on July 12, 2014.
12. Upon information and belief, 240 East 123rd Street, in the County of New York, City and State of New York is one of four 35-storey towers located between Lexington and Third Avenues and 122nd and 123rd Streets in the County of New York, City and State of New York.
13. Upon information and belief, 230 East 123rd Street, in the County of New York, City and State of New York is one of four 35-storey towers located between Lexington and Third Avenues and 122nd and 123rd Streets in the County of New York, City and State of New York.
14. Upon information and belief, 224 East 123rd Street, in the County of New York, City and State of New York is one of four 35-storey towers located between Lexington and Third Avenues and 122nd and 123rd Streets in the County of New York, City and State of New York.
15. Upon information and belief, 2253 3rd Avenue, in the County of New York, City and State of New York is one of four 35-storey towers located between Lexington and Third Avenues and 122nd and 123rd Streets in the County of New York, City and State of New York.

16. “Taino Towers” is the name designated for a complex of four 35-story towers located between Lexington and Third Avenues and 122nd and 123rd Streets in the County of New York, City and State of New York and designated with the street addresses of 240 East 123rd Street, 230 East 123rd Street, 224 East 123rd Street and 2253 3rd Avenue in the County of New York, City and State of New York.
17. Upon information and belief, Defendant, East Harlem Pilot Block-Building 1 Housing Development Fund Company, Inc. [hereinafter “EHPBB 1”] is a domestic not-for-profit corporation, organized and existing pursuant to the laws of the State of New York with its principal place of business in New York County, City and State of New York.
18. Upon information and belief, Defendant EHPBB 1 does business under the name of “Taino Towers.”
19. Upon information and belief, Defendant, East Harlem Pilot Block-Building 2 Housing Development Fund Company, Inc. [hereinafter “EHPBB 2”] is a domestic not-for-profit corporation, organized and existing pursuant to the laws of the State of New York with its principal place of business in New York County, City and State of New York.
20. Upon information and belief, Defendant EHPBB 2 does business under the name of “Taino Towers.”
21. Upon information and belief, Defendant, East Harlem Pilot Block-Building 3 Housing Development Fund Company, Inc. [hereinafter “EHPBB 3”] is a domestic not-for-profit corporation, organized and existing pursuant to the laws of

the State of New York with its principal place of business in New York County, City and State of New York.

22. Upon information and belief, Defendant EHPBB 3 does business under the name of “Taino Towers.”

23. Upon information and belief, Defendant, East Harlem Pilot Block-Building 4 Housing Development Fund Company, Inc. [hereinafter “EHPBB 4”] is a domestic not-for-profit corporation, organized and existing pursuant to the laws of the State of New York with its principal place of business in New York County, City and State of New York.

24. Upon information and belief, Defendant EHPBB 1 does business under the name of “Taino Towers.”

25. Defendant, Arco Management Corp. [hereinafter “ARCO”] is a domestic corporation organized and existing pursuant to the laws of the State of New York.

26. Upon information and belief, Defendant ARCO does business under the name of “Taino Towers.”

27. Upon information and belief, Defendant ARCO is responsible for the operation, maintenance, repair, supervision and management of the premises known as “Taino Towers.”

28. Upon information and belief, Defendant, XYZ Corporation (Actual name unknown) is a domestic business, organized and existing pursuant to the laws of the State of New York and, upon information and belief, does business under the name of “THE CRYSTAL BALLROOM.”

29. Defendant Plugout, LLC is a limited liability company, duly formed and created pursuant to the laws of the State of New York [hereinafter, "Plugout"].
30. Upon information and belief, Defendant EHPBB 1 does business under the name of "THE CRYSTAL BALLROOM."
31. Upon information and belief, Defendant EHPBB 2 does business under the name of "THE CRYSTAL BALLROOM."
32. Upon information and belief, Defendant EHPBB 3 does business under the name of "THE CRYSTAL BALLROOM."
33. Upon information and belief, Defendant EHPBB 4 does business under the name of "THE CRYSTAL BALLROOM."
34. Upon information and belief, Defendant EHPBB 1 owns, manages and otherwise operates a social entertainment hall known as "THE CRYSTAL BALLROOM."
35. Upon information and belief, Defendant EHPBB 2 owns, manages and otherwise operates a social entertainment hall known as "THE CRYSTAL BALLROOM."
36. Upon information and belief, Defendant EHPBB 3 owns, manages and otherwise operates a social entertainment hall known as "THE CRYSTAL BALLROOM."
37. Upon information and belief, Defendant EHPBB 4 owns, manages and otherwise operates a social entertainment hall known as "THE CRYSTAL BALLROOM."
38. The Plaintiff has complied with all conditions precedent under New York Law:
 - a. On August 1, 2014, the Plaintiff served and filed a Notice of Claim upon Defendant CITY and NYPD in full compliance with Section 50-e of the N.Y. General Municipal Law, **Exhibit "A"**;

- b. On August 1, 2014, the Plaintiff served and filed a Notice of Claim upon Defendant NYCTA in full compliance with Section 1212 of the N.Y. Public Authorities Law, **Exhibit “A”**;
 - c. On August 8, 2014, the Plaintiff served and filed a Corrected Notice of Claim upon Defendant CITY and NYPD in full compliance with Section 50-e of the N.Y. General Municipal Law, **Exhibit “B”**;
 - d. On August 8, 2014, the Plaintiff served and filed a Corrected Notice of Claim upon Defendant NYCTA in full compliance with Section 1212 of the Public Authorities Law, **Exhibit “B”**;
 - e. This action is timely commenced within one (1) year and ninety (90) days of the accrual of the cause of Action pursuant to the General Municipal Law, the Public Authorities Law and the General Construction Law.
39. Defendant Bratton is and was at all times responsible for the policies, practices and/or customs of Defendant NYPD, a municipal agency of Defendant CITY. Defendant Bratton is and was at all times relevant herein, responsible for the hiring, screening, training, retention, supervision, discipline, counseling and control of the Corrections Officers under his command who are or were employed by Defendants CITY and NYPD, including the Defendants Police Officers sued herein. He is sued in his official capacity as a policy maker.
40. Defendant CITY is responsible, *inter alia*, for the management, administration, conduct and supervision of all personnel employed by Defendant CITY to protect the safety of the public and the property of the public in the City of New York.
41. Defendant Bianco is and was at all times responsible for the policies, practices and/or customs of Defendant NYCTA, a municipal authority and is and was at all times relevant herein, responsible for the hiring, screening, training, retention, supervision, discipline, counseling and control of the procedures and conduct of

personnel and persons within the geographic locations of the New York City Subway System, including the conduct and coordination of Police Personnel employed by Defendants CITY and/or NYPD, including Defendant Police Officer Morris herein. He is sued in his official capacity as a policy maker.

42. At all times material hereto, Defendant “EHPBB 1” owned the premises known as 240 East 123rd Street in the County of New York, City and State of New York.
43. At all times material hereto, Defendant “EHPBB 2” owned the premises known as 240 East 123rd Street in the County of New York, City and State of New York.
44. At all times material hereto, Defendant “EHPBB 3” owned the premises known as 240 East 123rd Street in the County of New York, City and State of New York.
45. At all times material hereto, Defendant “EHPBB 4” owned the premises known as 240 East 123rd Street in the County of New York, City and State of New York.
46. At all times material hereto, Defendant “EHPBB 1” controlled the premises known as 240 East 123rd Street in the County of New York, City and State of New York.
47. At all times material hereto, Defendant “EHPBB 2” controlled the premises known as 240 East 123rd Street in the County of New York, City and State of New York.
48. At all times material hereto, Defendant “EHPBB 3” controlled the premises known as 240 East 123rd Street in the County of New York, City and State of New York.

49. At all times material hereto, Defendant “EHPBB 4” controlled the premises known as 240 East 123rd Street in the County of New York, City and State of New York.
50. At all times material hereto, Defendant ARCO was responsible for the operation, management, control, repair, maintenance and safety of the premises known as 240 East 123rd Street in the County of New York, City and State of New York.
51. At all times material hereto, Defendant XYZ operated or otherwise maintained and was responsible for events held at social hall known as “THE CRYSTAL BALLROOM” on the fourth floor at 240 East 123rd Street, New York, New York [hereinafter referred to as the “Crystal Ballroom”].
52. XYZ Corporation operated, and was otherwise responsible for the maintenance, repair and safety of the premises and location used by “THE CRYSTAL BALLROOM” at 240 East 123rd Street, New York, New York.
53. Upon information and belief, at all times material hereto, Defendant Plugout provided security surveillance to the geographic location and premises known as “Taino Towers.”
54. On July 12, 2014, the Plaintiff, Clifton Alston attended as a guest to an affair held at the Crystal Ballroom at 240 East 123rd Street.
55. At approximately 2:00 a.m. in the morning, the Plaintiff, Clifton Alston, along with two other people, exited the Crystal Ballroom and through a marked side exit in the lobby of Taino Towers at 240 East 123rd Street and proceeded to walk on a walkway adjacent to the building [hereinafter referred to as the “walkway”].

56. While he was on the “walkway” next to Taino Towers at 240 East 123rd Street, Defendants Police Officers John Doe Nos. “1” and “2” approached the Plaintiff and ordered him to “freeze.”

57. The Plaintiff did stood still and complied with these Defendants’ order.

58. Defendant Police Officer John Doe No. “1”, a male Caucasian, ordered the Plaintiff to:

“Put your hands up”

59. As the Plaintiff complied with Defendant Police Officer John Doe No. “1's” order, Defendant Police Officer John Doe No. “1” grabbed the Plaintiff’s left arm and started placing him in handcuffs.

60. While Defendant Police Officer John Doe No. “1's” was placing handcuffs on the Plaintiff, one of the Plaintiff’s companions asked why the Plaintiff was being arrested, and Defendant Police Officer John Doe No. “1's” responded:

“Shut the F- - - up before I arrest you, too.”

61. Defendant Police Officer John Doe No. “2”, also a male Caucasian, came over and grabbed the Plaintiff’s on his right side and forced the Plaintiff to bend downward.

62. While Defendants Police Officer John Doe Nos. “1” and “2” restrained the Plaintiff, Defendant Police Officer John Doe No. “3” came over and violently slammed the Plaintiff’s head into a nearby pole, causing serious and painful physical injury and bleeding to the area of the Plaintiff’s left eye.

63. Defendant Police Officers then forced and dragged the Plaintiff to an empty, blue booth with tinted windows, with the words “SECURITY” printed on a top which

was located in an area between the “Taino Towers” [hereinafter the “SECURITY BOOTH”].

64. Defendant Police Officer No. “3” entered the “SECURITY BOOTH” and attempted to force the Plaintiff into the “SECURITY BOOTH.”
65. The Plaintiff became fearful for his life and safety while being dragged into the “SECURITY BOOTH”, Defendant Police Officer No. “3” struck the Plaintiff in the face eye and mouth with a hard object, causing the Plaintiff to sustain more injuries to his eye and lip areas, causing him to bleed over his clothes.
66. After the Plaintiff was forced into the “SECURITY BOOTH” Defendant Police Officer No. “2” remained outside with his hand holding his gun holding at his waist.
67. Defendant Police Officer No. “3” ordered the Plaintiff:

“Sit the F - - - down”
68. Defendant Police Officer No. “3” ordered the Plaintiff to produce identification and then grabbed the Plaintiff’s left arm, forced the Plaintiff to stand-up and searched the Plaintiff’s pockets.
69. Defendant Police Officer No. “3” frisk and search of the Plaintiff’s person was without the Plaintiff’s consent or permission, and without reasonable nor probable cause.
70. Defendant Police Officer No. “3” during the course of his frisk and search of the Plaintiff’s person, seized the Plaintiff’s identification along with two cell phones he had been carrying and \$50.00 in cash consisting of two \$20 bills and a \$10 bill.

71. Defendant Police Officer No. “3” then began writing something, and Defendant Police Officer No. “2” said:
- “Let him go. He’s bleeding too hard. He’s bleeding too hard.”
72. As a result of the injuries the Defendant Police Officers inflicted, the Plaintiff’s clothing was soiled and bloodied.
73. Defendant Police Officer No. “3” then removed the handcuffs from the Plaintiff’s right arm first, then his left arm, and returned the Plaintiff’s identification, but did not return the Plaintiff’s cash or the cell phones.
74. The Defendant Police Officers never gave the Plaintiff a receipt for any of the goods which they seized on July 12, 2014.
75. The Plaintiff left the “SECURITY BOOTH” and found one of his companions a short distance away.
76. The Plaintiff and his companion went to the nearby subway station operated by Defendant NYCTA in front of the MacDonald’s restaurant at 2075 Lexington Avenue, New York, N.Y.
77. The Plaintiff, after going down the stairs to the subway station encountered Defendant Police Officer “John” Morris.
78. Defendant Police Officer “John” Morris refused to assist the Plaintiff, and with careless indifference to the Plaintiff’s injuries refused to permit the Plaintiff further enter the subway system.
79. Defendant Police Officer Morris told the Plaintiff:
- “You are bleeding too much, you cannot come down here, you have to go to another station.”

80. As a result of Defendant Police Officer Morris's conduct, the Plaintiff, who was need of immediate medical attention for his injuries, was forced by to go to leave the subway station.
81. As a result of Defendant Police Officer Morris's conduct, the Plaintiff was forced to walk further to seek medical attention, delaying his receipt of medical attention, thereby exacerbating his pain and injuries.
82. No criminal charges were filed against the Plaintiff in connection with the individual Police Officers' conduct, Defendants' unlawful conduct.
83. At all times material herein, the Plaintiff was innocent of any conduct warranting Defendant Police Officers' conduct against him.
84. As a result of foregoing Defendant Police Officers' conduct, the Plaintiff was required to seek and obtain medical treatment for his injuries.
85. That neither reasonable nor probable cause existed for the individual Defendant Police Officers to seize or arrest the Plaintiff.
86. That neither reasonable nor probable cause existed for the individual Defendant Police Officers to use any force against the Plaintiff.
87. The individual Defendant Police Officers conduct included, but not limited to false arrest, false search and search, unwarranted stop and frisk as well as excessive force against the Plaintiff.
88. Upon information and belief, the individual Defendants Police Officers' conduct against the Plaintiff was a mere pretext to provide color to their conduct, including the arrest and use of physical force against the Plaintiff.

89. The Plaintiff sustained emotional and physical injuries as a direct result of Defendants' conduct, including, but not limited to deep lacerations, sutures, pain and suffering, mental anguish, fright, shock and other injuries.
90. Defendant CITY and BRATTON failed to properly train the Defendant Police Officers on proper police procedures, including how to communicate with civilians, the proper process and procedure for conducting a stop, search and seizure, conducting warrantless seizures and arrests of individuals, the proper use of force during an arrest, the obligation and manner to provide truthful information in police reports as well as to act truthfully and honestly with the general public and not to threaten bodily harm.
91. Neither reasonable nor probable cause existed for the Defendant Police Officers' conduct towards the Plaintiff herein.
92. Defendant Police Officers Nos. "1", "2" and "3" used excessive force against the Plaintiff was without justification or cause.
93. Upon information and belief, Defendant Police Officers Nos. "1", "2" and "3" acts were especially committed against the Plaintiffs due to his race, color and national origin.
94. The Plaintiff sustained emotional and physical injury as a direct result of the aforementioned conduct by the Defendants, including, but not limited to discomfort, pain and suffering, mental anguish, fright, shock and other injuries.
95. No charges were ever brought against the Plaintiff, who has maintained that he was innocent of any criminal conduct at the time. Defendant Police Officers Nos.

“1”, “2” and “3” acted without neither reasonable nor probable cause, and their use of extremely excessive force was unreasonable under the attendant circumstances.

96. Defendant Police Officers Nos. “1”, “2”, “3” and Morris, by their foregoing acts, intentionally and willfully acted jointly and severally under color of law, statute, ordinance, regulations, customs and practice of the State of New York, to deprive the Plaintiff of his rights, privileges and immunities secured to him by the Constitutions and laws of the United States and New York.
97. All of the aforementioned acts of Defendant Police Officers Nos. “1”, “2”, “3” and Morris, their agents, servants and employees, were carried out under the color of state law.
98. All of the aforementioned acts deprived the Plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, in violation of 42 U.S.C. § 1983.
99. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as Police Officers, with all the actual and/or apparent authority attendant thereto.
100. The acts complained of were carried out by Defendant Police Officers Nos. “1”, “2”, “3” and Morris in their capacities as Police Officers, pursuant to the customs, usages, practices, procedures, and the rules of Defendants CITY and NYPD, all under the supervision of ranking officers of said department.

101. Defendant Police Officers Nos. “1”, “2”, “3” and Morris, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
102. The acts complained of deprived the Plaintiff of his rights, which include but are not limited to:
- a. Not to have excessive force imposed upon him;
 - b. Not to have summary punishment imposed upon him;
 - c. Not to have his property seized without “due process of law”;
 - d. Not to be denied and prevented from necessary and needed medical; and
 - e. To receive equal protection under the law.
103. The foregoing violations of the Plaintiff’s Constitutional rights were under color of law, statutes, regulations and Constitution of the State of New York.
104. As a result of the foregoing conduct by Defendants herein, the Plaintiff has been damaged in an amount to be determined by this Court but no event less than \$10,000,000.00 compensatory damages and \$10,000,000.00 punitive damages against the individual Defendant Police Officers.

PLAINTIFF’S SECOND CAUSE OF ACTION

105. The level of force employed by Defendant Police Officers Nos. “1”, “2” and “3” was objectively unreasonable and in violation of the Plaintiff’s constitutional rights.
106. As a result of the foregoing, the Plaintiff suffered significant bodily injuries, including but not limited to, cuts requiring sutures, bruises, bleeding, swelling,

and discoloration as well as a deprivation of liberty, invasion of privacy, severe emotional distress, public humiliation and violation of his constitutional rights.

107. As a result of the foregoing conduct by Defendants herein, the Plaintiff has been damaged in an amount to be determined by this Court, but no event less than \$10,000,000.00 compensatory damages and \$10,000,000.00 punitive damages against the individual Defendant Police Officers.

THIRD CAUSE OF ACTION

108. As a result of defendants' aforementioned conduct, the Plaintiff was subjected to an illegal, improper and false arrest by the individual Defendant Police Officers John Doe Nos. "1", "2" and "3" and taken into custody and caused to be falsely imprisoned, detained, confined without any probable cause, privilege or consent.
109. As a result of the foregoing, the Plaintiff sustained, *inter alia*, loss of liberty, emotional distress, embarrassment, humiliation, deprivation of his constitutional rights and has been damaged in an amount to be determined at trial.
110. As a result of the foregoing conduct by Defendants herein, the Plaintiff has been damaged in an amount to be determined by this Court, but no event less than \$10,000,000.00 compensatory damages and \$10,000,000.00 punitive damages against the individual Defendant Police Officers.

FOURTH CAUSE OF ACTION

111. As a result of the foregoing conduct by Defendant Police Officers John Doe Nos. "1", "2" and "3", the Plaintiff was subjected to an illegal and improper search.

112. The foregoing unlawful search violated the Plaintiff's constitutional right to privacy, as guaranteed by the Fourth, Fifth, and Fourteenth Amendments to the U.S. Constitution and Article I, Section 6 of the New York Constitution.
113. As a result of the foregoing, the Plaintiff sustained, *inter alia*, loss of liberty, emotional distress, embarrassment, humiliation, deprivation of his constitutional rights and has been damaged in an amount to be determined by this Court, but in no event less than \$10,000,000.00 compensatory damages and \$10,000,000.00 punitive damages against the individual Defendant Police Officers.

FIFTH CAUSE OF ACTION

114. Defendant Police Officers Morris wrongly deterred and prevented the Plaintiff from seeking and obtaining medical attention, and otherwise acting with reckless indifference by refusing to permit the Plaintiff to enter the subway to travel to a hospital for medical treatment.
115. Upon information and belief, Defendant Police Officer Morris was especially committed against the Plaintiff due to his race, color and national origin.
116. The Plaintiff exacerbation of his emotional and physical injuries as a direct result of the aforementioned conduct by the Defendants, including, but not limited to discomfort, pain and suffering, mental anguish, fright, shock and other injuries.
117. As a result of the foregoing, the Plaintiff sustained, *inter alia*, loss of liberty, emotional distress, embarrassment, humiliation, deprivation of his Constitutional rights and has been damaged in an amount to be determined by this Court, but in no event less than \$10,000,000.00 compensatory damages and \$10,000,000.00 punitive damages against the individual Defendant Police Officers.

SIXTH CAUSE OF ACTION

118. Defendants CITY and/or Bratton was/were obligated to provide rules, regulations and training concerning safe processes and procedures for members of Defendant NYPD in conducting and handling the entry into the dwellings of private citizens, including, but limited to the Plaintiff herein.
119. Defendants CITY and/or Bratton was/were obligated to provide rules, regulations and training concerning safe processes and procedures for members of Defendant NYPD in responding and handling claims of private citizens, including but not limited to the Plaintiff herein, regarding claims for stopping, frisking, seizing the property and person of civilians and otherwise using force against civilians, such as the Plaintiff, by members of Defendant NYPD.
120. Defendants CITY and/or Bratton, as the Defendants responsible for the policies, practices and/or customs of Defendant NYPD, acted with deliberate indifference to the rights of those who come into contact with Defendant NYPD by failing to:
 - a. Properly train, screen and supervise;
 - b. Inadequately monitor NYPD Officers stopping, frisking and seizing civilians so as to avoid the use of unnecessary force and other improper conduct;
 - c. Require members of Defendant NYPD, including the Defendant Police Officers herein, to not use disparate force and treatment against minority members, including persons of African-American descent such as the Plaintiff herein.
121. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

122. The acts complained of were carried out by the aforementioned individual Defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of Defendants City and NYPD all under the supervision of ranking officers of said department.
123. The foregoing customs, policies, usages, practices, procedures and rules of Defendants City and/or NYPD constituted a deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.
124. The foregoing customs, policies, usages, practices, procedures and rules of Defendants City and/or NYPD were the direct and proximate cause of the constitutional violations suffered by the Plaintiff herein.
125. The foregoing customs, policies, usages, practices, procedures and rules of Defendants City and/or NYPD were the moving force behind the constitutional violations suffered by the Plaintiff herein.
126. As a result of the foregoing customs, policies, usages, practices, procedures and rules of Defendants City and/or NYPD, the Plaintiff was subjected to unlawful and excessive damages and violations of his constitutional rights.
127. Defendant BRATTON, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate Police Officers, and were directly responsible for the violation of the Plaintiff's constitutional rights.
128. The individual Defendant Police Officers John Doe Nos. "1", "2", "3" and Morris, by their conduct, deprived the Plaintiff of his Federally protected rights, including, but not limited to, the right:

- a. Not to have summary punishment imposed upon her without due process;
 - b. Not to have excessive force imposed upon him and his property; and,
 - c. To receive equal protection under the law.
129. As a result of the foregoing, the Plaintiff sustained, *inter alia*, violation of his right to property and privacy, physical and emotional distress, embarrassment, humiliation, deprivation of her constitutional rights and is entitled to compensatory and punitive damages in an amount to be determined by trial.
130. As a result of the foregoing, the Plaintiff sustained, *inter alia*, loss of liberty, emotional distress, embarrassment, humiliation, deprivation of his constitutional rights and has been damaged in an amount to be determined at trial, but in no event less than \$10,000,000.00 compensatory damages and \$10,000,000.00 punitive damages against the individual Defendant Police Officers.

SEVENTH CAUSE OF ACTION

131. Upon information and belief, the New York City Subway system is under the operation, maintenance and control of Defendant NYCTA, specifically including the subway stations.
132. Upon information and belief, Defendant Bianco, as President of the MTA NYCTA is in charge of the development and implementation of rules and regulations for conduct within the physical geographic locale of the subway stations, including the coordination and conduct of members of Defendant NYPD.
133. Defendant NYCTA and/or Bianco, was/were obligated to provide rules, regulations and training concerning safe processes and procedures for members of Defendant NYCTA while within the geographic jurisdiction of the in conducting

and handling the entry into the dwellings of private citizens, including, but limited to the Plaintiff herein.

134. Defendants NYCTA and/or Bianco was/were obligated to provide rules, regulations and training concerning safe processes and procedures for members of Defendant NYCTA in responding and handling claims of private citizens, and not to discriminate nor restrict the use of the subways by persons in of medical attention.
135. Defendants NYCTA and/or Bianco as the Defendants responsible for the policies, practices and/or customs of Defendant NYPD, acted with deliberate indifference to the rights of those who come into contact with Defendant NYPD by failing to:
 - a. Properly train, screen and supervise;
 - b. Inadequately monitor NYPD Officers while within the geographic locations of Defendant NYCTA;
 - c. Require members of Defendant NYCTA, including members of Defendant NYPD, including Defendant Police Officer Morris herein, to not use disparate treatment against minority members, including persons of African-American descent such as the Plaintiff herein, from using the subway system, particularly when in need of obtaining medical assistance.
136. The foregoing customs, policies, usages, practices, procedures and rules of Defendants NYCTA and/or NYPD constituted a deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.
137. The foregoing customs, policies, usages, practices, procedures and rules of Defendants NYCTA and/or NYPD were the direct and proximate cause of constitutional violations suffered by the Plaintiff herein.

138. The foregoing customs, policies, usages, practices, procedures and rules of Defendants NYCTA and/or NYPD further exacerbated the earlier constitutional violations suffered by the Plaintiff herein.
139. As a result of the foregoing customs, policies, usages, practices, procedures and rules of Defendants NYCTA and/or NYPD, the Plaintiff was subjected to unlawful and excessive damages and violations of his constitutional rights.
140. Upon information and belief, Defendant Bianco, acquiesced to a pattern of unconstitutional conduct by subordinate Police Officers while operating in the geographic locations of Defendant NYCTA subways.
141. As a result of the foregoing, the Plaintiff sustained, *inter alia*, violation of his right to property and privacy, physical and emotional distress, embarrassment, humiliation, deprivation of her constitutional rights and is entitled to compensatory and punitive damages in an amount to be determined by trial.
142. As a result of the foregoing, the Plaintiff sustained, *inter alia*, loss of liberty, emotional distress, embarrassment, humiliation, deprivation of his constitutional rights and has been damaged in an amount to be determined at trial, but in no event less than \$10,000,000.00 compensatory damages.

EIGHTH CAUSE OF ACTION

143. Pursuant to the Americans with Disabilities Act, 42 USC §§ 12101 *et seq.* [“ADA”], Defendant NYCTA and Defendants NYPD were required to provide access to persons with handicaps and disabilities, such as the Plaintiff who was suffering from injuries.

144. Defendants NYCTA and Defendant Police Officer Morris knew, or should have known, that the Plaintiff suffered from physical disabilities rendered by the recent attack on his person by Defendant Police Officers John Doe Nos. “1”, “2” and “3”.
145. Defendants NYCTA and Defendant Police Officer Morris knowing the Plaintiff was physically disabled due to his injuries, acted in a in a recklessly indifferent manner by preventing medical treatment, and failing to properly accommodate the Plaintiff’s disability, in violation of the Plaintiff’s rights under the ADA by failing to provide him with proper accommodation and medical, as well as access onto the subway as well as other care and treatment.
146. Defendants further acted in a wrongful and recklessly indifferent manner by failing to provide the Plaintiff with necessary and needed medical attention and medication, as well as allowing him to travel to a hospital for medical attention.
147. As a result of Defendants’ conduct in failing to properly accommodate the Plaintiff under ADA, the Plaintiff the Plaintiff has been damaged in an amount to be determined by this Court, but not less than TEN MILLION (\$10,000,000.00).

NINTH CAUSE OF ACTION

148. Upon information and belief, Defendants CITY and/or NYCTA are recipients of Federal funds and as such recipients, are required pursuant Section 504 of the Rehabilitation Act of 1973 [“RA”] to reasonably accommodate persons with disabilities in their facilities, programs and services, and to modify such facilities, services, and programs as necessary to accomplish this purpose.

149. Defendants knowing the Plaintiff was visually physically disabled due to injuries he sustained as a result of the conduct by Defendants John Does Nos. “1”, “2” and “3”, failed to properly accommodate the Plaintiff’s disability, in violation of the Plaintiff’s rights under Section 504 of the RA.
150. Defendants further acted in a wrongful and recklessly indifferent manner by preventing medical treatment, and failing to provide the Plaintiff with necessary and needed medical attention and medication and otherwise prevented and hindered him from receiving from such treatment.
151. As a result of Defendants’ conduct in failing to properly accommodate the Plaintiff under Section 504 of the Rehabilitation Act, the Plaintiff the Plaintiff has been damaged in an amount to be determined by this Court, but not less than TEN MILLION (\$10,000,000.00) DOLLARS.

TENTH CAUSE OF ACTION

152. Defendants CITY by its employees, agents, and/or servants was negligent, careless, and reckless in failing to properly provide the Plaintiff with a safe location resulting in the Plaintiff being assaulted and battered.
153. Defendants John Does Nos. “1”, “2” and “3” aforementioned actions placed the Plaintiff, in apprehension of imminent harmful and offensive bodily contact.
154. As a result of Defendants John Does Nos. “1”, “2” and “3”’s conduct, the Plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

155. The individual Defendant Police Officers touched the Plaintiff, in a harmful and offensive manner.
156. The individual Defendant Police Officers John Does Nos. “1”, “2” and “3”, acted without privilege or consent from the Plaintiff.
157. As a result of the foregoing, the Plaintiff sustained, *inter alia*, physical injuries, emotional distress, embarrassment and humiliation, loss of liberty, and deprivation of his constitutional rights.
158. As a result of the foregoing, plaintiff is entitled to compensatory and punitive damages to be determined by the Court, but not less than TEN MILLION (\$10,000,000.00) DOLLARS.

ELEVENTH CAUSE OF ACTION

159. Defendant CITY, NYCTA and/or BRATTON selected, hired, trained, retained, assigned and supervised all members of said its Police Department, including the individual Police Officers named above.
160. Defendants CITY, NYCTA and/or BRATTON breached their duties to the Plaintiff by hiring unqualified Police Officers; by failing to properly train them in Constitutional process and procedures Police procedures; by failing to train them in proper use of force, basis for stop, frisk and search, by failing to supervise their conduct, and otherwise allowing the Defendant Police Officers to use their power and authority as NYPD Officers in a wrongful, illegal, oppressive, violent, and unconstitutional manner.

161. As a result of Defendants' negligence in the hiring and training of its servants, employees and/or agents, including, but not limited to the Defendants' Police Officers, causing the Plaintiff to suffer physical and mental injury, pain and trauma, together with embarrassment, humiliation shock, fright and is entitled to compensatory damages in an amount to be determined at Trial.
162. As a result of the foregoing conduct by Defendants herein, the Plaintiff has been damaged in an amount to be determined by this Court, but not less than TEN MILLION (\$10,000,000.00) DOLLARS.

TWELFTH CAUSE OF ACTION

163. As a result of Defendants' CITY'S conduct and negligence in the hiring and supervision of the Defendant Police Officers, the Plaintiff has been damaged in an amount to be determined by this Court, but not less than TEN MILLION (\$10,000,000.00) DOLLARS as against the defendants.

THIRTEENTH CAUSE OF ACTION

164. At all times material hereto, Defendants ARCO, "EHPBB 1," "EHPBB 2," "EHPBB 3" and "EHPBB 4" were on notice that the geographic area where "Taino Towers" is located is a high crime area.
165. At all times material hereto, Defendants ARCO, "EHPBB 1," "EHPBB 2," "EHPBB 3" and "EHPBB 4" knew they had to provide specific and adequate security for the protection of those persons lawfully present at and around the "Taino Towers."

166. Upon information and belief, commencing in and about 2011, Defendants ARCO, “EHPBB 1,” “EHPBB 2,” “EHPBB 3” and “EHPBB 4” retained Defendant Plugout to provide surveillance for the geographic location known as “Taino Towers.”
167. Upon information and belief, commencing in and about 2011, Defendants ARCO, “EHPBB 1,” “EHPBB 2,” “EHPBB 3” and “EHPBB 4” retained Defendant Plugout to provide security for the geographic location known as “Taino Towers.”
168. At all times material, the “walkway” including the curtailage around 240 East 123rd Street is a location maintained and operated by Defendant “EHPBB 1.”
169. At all times material, the “walkway” including the curtailage around 240 East 123rd Street is a location maintained and operated by Defendant “EHPBB 2.”
170. At all times material, the “walkway” including the curtailage around 240 East 123rd Street is a location maintained and operated by Defendant “EHPBB 3.”
171. At all times material, the “walkway” including the curtailage around 240 East 123rd Street is a location maintained and operated by Defendant “EHPBB 4.”
172. At all times material, the “walkway” the “walkway” including the curtailage around 240 East 123rd Street is a location maintained and operated by Defendant ARCO.
173. At all times material hereto, it was the duty of Defendant “EHPBB 1”, its servants, agents and/or employees to maintain, manage, operate, control and secure the “walkway” and attendant area, including the “SECURITY BOOTH” and area leading to the “SECURITY BOOTH” in a reasonably safe and secure

condition in accordance with the laws of the City and State of New York, and/or to maintain the safety and provide security of each and every person within said premises.

174. At all times material hereto, it was the duty of Defendant “EHPBB 2”, its servants, agents and/or employees to maintain, manage, operate, control and secure the “walkway” and attendant area, including the “SECURITY BOOTH” and area leading to the “SECURITY BOOTH” in a reasonably safe and secure condition in accordance with the laws of the City and State of New York, and/or to maintain the safety and provide security of each and every person within said premises.

175. At all times material hereto, it was the duty of Defendant “EHPBB 3”, its servants, agents and/or employees to maintain, manage, operate, control and secure the “walkway” and attendant area, including the “SECURITY BOOTH” and area leading to the “SECURITY BOOTH” in a reasonably safe and secure condition in accordance with the laws of the City and State of New York, and/or to maintain the safety and provide security of each and every person within said premises.

176. At all times material hereto, it was the duty of Defendant “EHPBB 4”, its servants, agents and/or employees to maintain, manage, operate, control and secure the “walkway” and attendant area, including the “SECURITY BOOTH” and area leading to the “SECURITY BOOTH” in a reasonably safe and secure condition in accordance with the laws of the City and State of New York, and/or

to maintain the safety and provide security of each and every person within said premises.

177. At all times material hereto, it was the duty of Defendant ARCO, its servants, agents and/or employees to maintain, manage, operate, control and secure the “walkway” and attendant area, including the “SECURITY BOOTH” and area leading to the “SECURITY BOOTH” in a reasonably safe and secure condition in accordance with the laws of the City and State of New York, and/or to maintain the safety and provide security of each and every person within said premises.
178. At all times material hereto, it was the duty of Defendant Plugout, its servants, agents and/or employees to maintain, manage, operate, control and secure the “walkway” and attendant area, including the “SECURITY BOOTH” and area leading to the “SECURITY BOOTH” in a reasonably safe and secure condition in accordance with the laws of the City and State of New York, and/or to maintain the safety and provide security of each and every person within said premises.
179. At all times material hereto, Defendant “EHPBB 1” had a duty to provide a secure and safe “walkway” and area adjacent to 240 East 123rd Street.
180. At all times material hereto, Defendant “EHPBB 2” had a duty to provide a secure and safe “walkway” and area adjacent to 240 East 123rd Street.
181. At all times material hereto, Defendant “EHPBB 3” had a duty to provide a secure and safe “walkway” and area adjacent to 240 East 123rd Street.
182. At all times material hereto, Defendant “EHPBB 4” had a duty to provide a secure and safe “walkway” and area adjacent to 240 East 123rd Street.

183. At all times material hereto, Defendant ARCO had a duty to provide a secure and safe “walkway” and area adjacent to 240 East 123rd Street.
184. At all times material hereto, Defendant Plugout had a duty to provide a secure and safe “walkway” and area adjacent to 240 East 123rd Street.
185. Upon information and belief, prior to July 12, 2014, the various security systems operated and maintained by Defendants “EHPBB 1,” “EHPBB 2,” “EHPBB 3,” “EHPBB 4,” ARCO and/or Plugout were not fully functioning and otherwise inadequate due to need for maintenance, obstructions (including the erection of a shed) as well as other matters and reasons.
186. Upon information and belief, on July 12, 2014, one or more of the security features in place at and around the “walkway” were not properly functioning.
187. Upon information and belief, for a considerable time prior to July 12, 2014, Defendant “EHPBB 1,” “EHPBB 2,” “EHPBB 3,” “EHPBB 4,” ARCO and/or Plugout had due and full knowledge and notice that various security features at and around the “walkway,” including, but not limited to inadequate lighting, construction platforms, inadequate security, and malfunctioning gate mechanism constituted a dangerous condition.
188. Upon information and belief, on July 12, 2014 and for a time prior thereto, Defendants “EHPBB 1,” “EHPBB 2,” “EHPBB 3,” “EHPBB 4,” ARCO and/or Plugout, by their agents, servants, and/or employees, violated, breached, and disregarded their said affirmative duty and obligations, and otherwise were negligent in failing, omitting, refusing to provide a safe “walkway” location along

the side of 240 East 123rd Street, and was also negligent in allowing said area to be and remain in a dangerous and unsafe condition resulting and causing, suffering, permitting and allowing trespassers and other improper and unwanted persons to enter and/or remain upon the premises, and otherwise protecting those lawfully on its property from foreseeable dangers it knew or should have known.

189. Upon information and belief, on July 12, 2014 and for a time prior thereto, Defendants “EHPBB 1,” “EHPBB 2,” “EHPBB 3,” “EHPBB 4,” ARCO and/or Plugout were further negligent by failing, omitting, neglecting and refusing to take heed or notice of said dangerous conditions, thereby resulting in crimes committed against those lawfully on its premises, including the Plaintiff herein.
190. On July 12, 2014, at approximately 2:00 a.m. the Plaintiff was attacked, assaulted, battered, imprisoned and otherwise injured as well as robbed of personal property while at 240 East 123rd Street, New York, New York.
191. On July 12, 2014, the Plaintiff was assaulted, battered and robbed by trespassers who forcibly restrained, viciously assaulted, terrorized and physically beat the Plaintiff, thereby causing him to sustain serious and permanent personal injuries.
192. The July 12, 2014 assault, battery and robbery against the Plaintiff was due to the negligence of Defendants “EHPBB 1,” “EHPBB 2,” “EHPBB 3,” “EHPBB 4,” ARCO and/or Plugout in their failure to properly provide security to the location, or otherwise warning the Plaintiff of such dangers.
193. As a result of the foregoing negligent conduct, the Plaintiff sustained serious, severe and grievous emotional as well as physical permanent personal injuries in

an amount to be determined by this Court, but in no event less than TEN MILLION (\$10,000,000.00) DOLLARS, as well as costs, interest and disbursements herein.

WHEREFORE, Plaintiff respectfully prays this Court for a judgment as follows:

- A) In an amount to be determined by this Court, but in no event less than TEN MILLION (\$10,000,000.00) DOLLARS compensatory damages on the First, Second, Third, Fourth, Fifth, Sixth, Seventh, Eighth, Ninth, Tenth, Eleventh, Twelfth and Thirteenth Causes of Action as compensatory damages as against Defendants and that said judgment be jointly and severally on behalf of the Plaintiff;
- B) In an amount to be determined by this Court, but in no event less than TEN MILLION (\$10,000,000.00) DOLLARS punitive damages on the First, Second, Third, Fourth, Fifth and Sixth Causes of Action against Defendants John Doe Nos. "1", "2", "3" and Morris;
- C) Reasonable attorneys fees pursuant to 42 U.S.C. § 1988 in an amount to be determined by this Court;

as well as costs, fees disbursements.

Dated: New York, N.Y.
October 13, 2015

Yours, etc.,

MATTHEW A. KAUFMAN

By: Matthew A. Kaufman
Attorney for Plaintiff

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MAK File No. 15,444.301

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Index No.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK**

CLIFTON ALSTON,

Plaintiff,

-against-

THE CITY OF NEW YORK, *et al.*,

Defendant.

VERIFIED COMPLAINT

MATTHEW A. KAUFMAN

ATTORNEY FOR PLAINTIFF

225 BROADWAY - SUITE 1606

NEW YORK, N.Y. 10007

TEL. No. (212) 619-2200

FILE No. 15,444.301

**CITY OF NEW YORK and
NEW YORK CITY TRANSIT AUTHORITY**
In the Matter of the Claim of

CLIFTON ALSTON,

Claimant,

-against-

THE CITY OF NEW YORK, *et al.*,

Respondents.

**VERIFIED CORRECTED
NOTICE OF CLAIM**

MATTHEW A. KAUFMAN

ATTORNEY FOR CLAIMANT

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FILE NO. 15,444.301